

SENATE No. 2373

The Commonwealth of Massachusetts

PRESENTED BY:

Sal N. DiDomenico

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to class 3 electric bicycles.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	
<i>Steven Owens</i>	<i>29th Middlesex</i>	<i>1/27/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>3/3/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>8/21/2025</i>

SENATE No. 2373

By Mr. DiDomenico, a petition (accompanied by bill, Senate, No. 2373) of Sal N. DiDomenico, Steven Owens and Bruce E. Tarr for legislation relative to class 3 electric bicycles. Transportation.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2230 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to class 3 electric bicycles.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 1 of chapter 90 of the General Laws, as appearing in the 2022 Official Edition, is
2 hereby amended by inserting after the definition of “Class 2 electric bicycle” the following
3 definition:-

4 "Class 3 – an electric bicycle equipped with a motor that provides assistance only when
5 the rider is pedaling, and that ceases to provide assistance when the bicycle reaches the speed of
6 28 miles per hour;"

7 Section 1 of chapter 90, as so appearing, is hereby further amended by inserting within
8 the definition of “Department” the following definition:-

9 “Electric bicycle”, a bicycle or tricycle equipped with fully operable pedals and an
10 electric motor of 750 watts or less that meets the requirements of a class 1 electric bicycle, class
11 2 electric bicycle, or class 3 electric bicycle."

12 Chapter 85 of the General Laws, as appearing in the 2022 Official Edition, is hereby
13 amended by inserting in section 11B¾ the following:-

14 A municipality, local authority or state agency with jurisdiction over a natural surface
15 trail designated for bicycle use made by clearing and grading the soil, after public notice and a
16 public hearing may adopt ordinances or regulations prohibiting or otherwise regulating the
17 operation of electric bicycles on such paths, including, but not limited to, the imposition of speed
18 limits."

19 Chapter 85 of the General Laws, as appearing in the 2022 Official Edition, is hereby
20 amended by striking in section 11B¾ the following:-

21 "(d) An electric bicycle shall not be operated on a trail designated for nonmotorized
22 traffic, that a municipality, local authority or state agency has jurisdiction over, if such trail has a
23 natural surface tread made by clearing and grading the soil and no surfacing materials have been
24 added; provided, however, that a municipality, local authority or state agency after public notice
25 and a public hearing may adopt ordinances or regulations permitting or otherwise regulating the
26 use of electric bicycles on such a trail within its jurisdiction, including, but not limited to, the
27 imposition of speed limits."

28 Chapter 85 of the General Laws, as appearing in the 2022 Official Edition, is hereby
29 amended by striking in section 11B¾ (b) the following:- "that electric bicycles shall not be
30 ridden or operated on sidewalks."